

COMMITTEE ON REGULATORY AFFAIRS AND GOVERNMENT EFFICIENCY
SENATE AMENDMENTS TO S.B. 1108
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Heading change

3 The chapter heading of title 44, chapter 38, Arizona Revised
4 Statutes, is changed from "BUSINESSES EXEMPT FROM MASK MANDATE" to
5 "BUSINESSES GENERALLY".

6 Sec. 2. Title 44, chapter 38, article 1, Arizona Revised Statutes,
7 is amended by adding section 44-7952, to read:

8 44-7952. Cash transactions; mandatory rounding of transaction
9 totals; notice; enforcement

10 A. IF ONE-CENT COINS ARE NOT AVAILABLE OR ARE NOT USED BY A SELLER
11 AT A POINT OF SALE, THE SELLER SHALL APPLY SWEDISH ROUNDING TO A TOTAL
12 TRANSACTION AMOUNT THAT ROUNDS THE TOTAL TRANSACTION AMOUNT TO THE NEAREST
13 FIVE-CENT INCREMENT. IF A TOTAL TRANSACTION AMOUNT ENDS:

14 1. IN ONE OR TWO CENTS, THE TOTAL TRANSACTION AMOUNT IS ROUNDED
15 DOWN TO THE NEAREST MULTIPLE OF FIVE CENTS.

16 2. IN THREE OR FOUR CENTS, THE TOTAL TRANSACTION AMOUNT IS ROUNDED
17 UP TO THE NEAREST MULTIPLE OF FIVE CENTS.

18 3. IN SIX OR SEVEN CENTS, THE TOTAL TRANSACTION AMOUNT IS ROUNDED
19 DOWN TO THE NEAREST MULTIPLE OF FIVE CENTS.

20 4. IN EIGHT OR NINE CENTS, THE TOTAL TRANSACTION AMOUNT IS ROUNDED
21 UP TO THE NEAREST MULTIPLE OF FIVE CENTS.

22 B. SWEDISH ROUNDING APPLIES TO A FINAL TOTAL TRANSACTION AMOUNT OF
23 A CASH TRANSACTION AFTER TAXES, FEES AND OTHER CHARGES ARE CALCULATED.

24 C. SWEDISH ROUNDING DOES NOT APPLY TO~~:-~~

25 ~~1. THE SALE OF AN INDIVIDUAL ITEM.~~

26 ~~2. A TRANSACTION THAT IS PAID BY A CREDIT CARD, DEBIT CARD,~~
27 ~~ELECTRONIC FUNDS TRANSFER, MOBILE PAYMENT APPLICATION OR OTHER NON-CASH~~
28 ~~PAYMENT METHOD.]~~ [A TRANSACTION THAT IS PAID BY A CREDIT CARD, DEBIT CARD,

1 ELECTRONIC FUNDS TRANSFER, MOBILE PAYMENT APPLICATION OR OTHER NON-CASH
2 PAYMENT METHOD.]
3 D. A SELLER THAT IS SUBJECT TO THIS SECTION SHALL POST A NOTICE
4 THAT IS VISIBLE TO CUSTOMERS AT THE POINT OF SALE STATING "CASH
5 TRANSACTIONS ARE ROUNDED TO THE NEAREST FIVE-CENT INCREMENT PURSUANT TO
6 STATE LAW".
7 E. A SELLER MAY NOT APPLY A ROUNDING METHOD OTHER THAN SWEDISH
8 ROUNDING.
9 [F. A SELLER SHALL CALCULATE AND REMIT ALL TAXES AND FEES THAT ARE
10 IMPOSED BY A STATE OR MUNICIPAL TAXING AUTHORITY BASED ON THE SALES PRICE
11 BEFORE THE CASH TRANSACTION WAS ROUNDED.]
12 ~~[F.]~~ [G.] THIS SECTION SHALL BE ENFORCED BY THE WEIGHTS AND
13 MEASURES SERVICES DIVISION OF THE ARIZONA DEPARTMENT OF AGRICULTURE
14 PURSUANT TO TITLE 3, CHAPTER 19. THE DIVISION MAY ISSUE WARNINGS AND
15 ORDERS AND IMPOSE CIVIL PENALTIES IN ADDITION TO OTHER ENFORCEMENT
16 MEASURES.
17 [H. A SELLER IS NOT IN VIOLATION OF ANY STATE OR MUNICIPAL
18 REQUIREMENT, LAW, REGULATION OR STANDARD IF THE ACTION IS BASED ON
19 COMPLIANCE WITH THIS SECTION.]
20 ~~[G.]~~ [I.] THIS SECTION IS INTENDED TO OPERATE CONSISTENTLY WITH
21 FEDERAL LAW THAT GOVERNS UNITED STATES COINAGE AND LEGAL TENDER.
22 ~~[H.]~~ [J.] THIS SECTION DOES NOT:
23 1. DECLARE ANY COIN OR CURRENCY INVALID AS LEGAL TENDER.
24 2. REQUIRE ACCEPTANCE OR REFUSAL OF ANY SPECIFIC DENOMINATION OF
25 THE UNITED STATES COIN OR CURRENCY.
26 3. PREEMPT, CONFLICT WITH OR SUPERSEDE ANY PROVISION OF FEDERAL LAW
27 REGULATION.
28 <<Sec. 3. Legislative intent
29 [The legislature intends that section 44-7952, Arizona Revised
30 Statutes, as added by this act, protects businesses and governmental
31 agencies in this state.]>>

32 Enroll and engross to conform
33 Amend title to conform

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